

24STCV07239 24STCV07239

County: los-angeles

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Case Number: 24STCV07239 Hearing Date: August 3, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: August 3, 2026 TRIAL DATE: May 4, 2027

CASE: MONARCH LLC v. Total Resources International, Inc., et al.

CASE NO.: 24STCV07239

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF FORM INTERROGATORIES, SPECIAL INTERROGATORIES, & REQUEST FOR PRODUCTION OF DOCUMENTS

MOVING PARTY: Plaintiff MONARCH, LLC

RESPONDING PARTY(S): Unopposed

PROOF OF SERVICE:

- Correct Address: Yes.
- (CCP § 1005(b)): (1)-(2) OK. Served electronically on May 1, 2026 for a hearing date of August 3, 2026.

CASE HISTORY:

- 3/22/24: Complaint filed.
- 06/26/24: Amended Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a violation of Proposition 65 action. Plaintiff Mothers Oversight Network for Actionable Contaminant Harm aka MONARCH LLC ("Plaintiff") filed an amended complaint for civil penalty and injunctive relief against Defendant Total Resources International, Inc. ("Defendant"), and Does 1 through 100, on June 26, 2024. Plaintiff alleges that Defendant manufactured, distributed, and/or sold first aid kits within California that contained Diisononyl Phthalate ("DINP"), a known carcinogen, without providing a clear and reasonable warning, specifically the Be Smart Get Prepared 201 Piece First Aid Kit ("Product"). Plaintiff further alleges that it purchased the product from Walmart.com on May 12, 2023, which did not contain a Prop 65 warning, and requested an expert report analyzing the product: the expert opined on June 26, 2023, that use of the product would lead to unsafe exposure to DINP. Plaintiff thus served a Notice of Violation on the Office of the Attorney General, Defendant, and all other required sources. Plaintiff alleges that 60 days have passed since said service.

TENTATIVE RULING:

Plaintiff's motions to compel further responses to the identified first set of form interrogatories and requests for production of documents are GRANTED. Plaintiff's motion to compel further responses to the first set of special interrogatories is DENIED.

Moving party to give notice.

DISCUSSION:

Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, & Requests for Production

Plaintiff moves to compel further responses to its first set of form interrogatories, special interrogatories, and requests for production.

I. LEGAL STANDARD

A. Interrogatories

Code of Civil Procedure section 2030.300 provides that a propounding party may bring a motion to compel further responses to interrogatories, where the propounding deems any of the following: (1) An answer to a particular interrogatory is evasive or incomplete, (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or (3) An objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) A motion compelling further responses to Interrogatories must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b).)

B. Requests for Production

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... [a] statement of compliance with the demand is incomplete[;] ... [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] ... [a]n objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310 (a).) The motion must set forth specific facts showing good cause justifying the discovery sought by the demand, and both the motion and opposition must be accompanied by a separate statement or attorney declaration providing a concise outline of the discovery requests at issue and each response in dispute. (Id., at § 2031.310 (b)(1), (2), (3).)

II. TIMELINESS

A motion to compel further responses to interrogatories and requests for production must be served “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c).) The 45-day requirement is mandatory and jurisdictional. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff’s counsel propounded Requests for Admissions, Requests for Production, Form Interrogatories, and Special Interrogatories on Defendant on May 3, 2024. (Greenbaum Decl., ¶ 5.) Defendant served responses to the complete set of discovery on July 20, 2024 by mail and electronic service. (Id., ¶ 12.) On October 11 & 14, 2024, this court granted Plaintiff’s motion to compel further responses to form and special interrogatories and granted in part Plaintiff’s motion to compel further responses to Plaintiff’s requests for production. (Id., ¶ 15.) On December 10, 2024, Defendant provided further responses with objections. (Id., ¶ 16.) Plaintiff requested Defendant to re-serve the responses with objections and provided extensions to respond by February 7, 2025. (Id., ¶¶ 17-22.) On October 20, 2025, at the IDC, Defendant’s counsel agreed to provide responses by October 27, but even after an extension to October 29, Defendant failed to serve responses. (Id., ¶¶ 33-35.) During a second IDC meeting on February 5, 2026, Defendant’s counsel once again agreed to provide responses by February 10, but Defendant did not serve responses until March 20, 2026, which Plaintiff alleges were deficient.^[1] (Id., ¶¶ 41-49.) Plaintiff sent another email on March 26, 2026 regarding the deficient responses; as of these motions’ filings, Plaintiff has not received responses. (Id., ¶¶ 50-52.)

Accordingly, because Plaintiff’s motions were due on May 6, 2026, pursuant to Code of Civil Procedure sections 2030.300, subdivision (c) and 2031.310, subdivision (c), Plaintiff’s motions are timely.

III. MEET AND CONFER

A party making a motion to compel further responses must also include a declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented by the motion before filing the motion. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

Plaintiff’s counsel states that his office sent Defendant’s counsel a meet and confer letter regarding the discovery responses on March 26, 2026, which counsel failed to respond to. (Greenbaum Decl., ¶ 50.) While a single letter is usually not sufficient to demonstrate a “reasonable and good faith attempt” at informal resolution, this dispute as to the discovery responses has been bubbling for almost two years with multiple meet and confer efforts prior to the one on March 26, 2026. Accordingly, the Court turns to the motions’ merits in its discretion.

IV. ANALYSIS

Plaintiff propounded set one of form interrogatories, special interrogatories, and requests for production on May 3, 2024. Defendant served responses to the complete set of discovery on July 20, 2024 by mail and electronic service. (Id., ¶ 12.) On October 11 & 14, 2024, this court granted Plaintiff’s motion to compel further responses to form and special interrogatories and granted in part Plaintiff’s motion to compel further responses to Plaintiff’s requests for production. (Id., ¶ 15.) On December 10, 2024, Defendant provided further responses with objections. (Id., ¶ 16.)

A. Interrogatories

Plaintiff seeks further responses to form interrogatories (“FROGs”) Nos. 12.1, 12.4, 15.1, and 17.1 and special interrogatories (“SROGs”) No. 11. Defendant has not filed an opposition to these motions.

FROGs No. 12.1 seeks personally identifiable information regarding individuals who witnessed the incident, made or heard statements about the incident, or have knowledge of the incident. (FROGs Sep. Statement, at p. 2.) Defendant responds “none” to the first three subparts but identified an individual who Defendant claims has knowledge of the incident. (Ibid.) Plaintiff argues that the response is incomplete and evasive because Defendant’s responses are contradictory and it has failed to respond without objections. (Ibid.) The court finds Defendant’s response to be paradoxical and incomplete.

FROGs No. 12.4 seeks information regarding photos, films, or videotapes depicting any place object, or individual concerning the incident or Plaintiff’s alleged injuries. (Id., at p. 3.) Defendant responds in the affirmative, and provided responses to subdivisions (a), (b), and (e); however, in response to questions regarding the date the visuals were taken and the identity of the individual who took said evidence, Defendant responds “Unknown.” (Ibid.) The court finds this response to be incomplete and evasive because Defendant states it is the owner of the original copy of said visuals yet lacks information about the date of the evidence and who took them.

FROGs No. 15.1 seeks information regarding Defendant’s denial of material allegations and each special and/or affirmative defense in its pleading. (Id., at p. 4.) Defendant responded that the question is inapplicable because it has not filed an answer. (Ibid.) However, Defendant filed an answer on April 1, 2025. The court finds further response is warranted.

FROGs No. 17.1 series seeks Defendant to admit that it did not manufacture the product during the relevant period. (Ibid.) Defendant admitted that it “assembled the product from components purchased from third parties and did not manufacture any of the components contained in the product.” (Ibid.) Defendant’s response is evasive and does not address the actual question.

Lastly, SROGs No. 11 asks how many units of product were sold during the period: Defendant responded “208 pcs of 20HBC01002NEW 3,201 pcs of 10OUT020122.” (SROGs Sep. Statement, at p. 2.) Plaintiff argues that the response is evasive because the figures do not align with produced documents. (Ibid.) However, Plaintiff fails to point to said documents or specify how the provided figures differ with the produced documents. Thus, the court does not find that Plaintiff has satisfied its burden to compel further responses to SROGs No. 11.

Accordingly, the court grants Plaintiff’s motion to compel further responses to the identified FROGs. However, the court denied Plaintiff’s motion to compel further responses to SROGs No.11.

B. Production of Documents

Plaintiff seeks further responses to requests for production (“RFP”) Nos. 1-5, 8-10, 15-16, and 19. Defendant has not filed an opposition to his motion.

RFPs Nos. 1 through 5 and 15-16 seek documents relating to sales, profits, revenues, and expenses, manufacture, and distribution pertaining to the product which is the subject of this action. (RFP Sep. Statement, at pp. 2-4, 6.) RFPs Nos. 8 through 10 seek a list of all first aid kits, such as the subject product, which Defendant manufactures, distributes, or sells. (Id., at pp. 4-5.) Finally, RFP No. 19 seeks all documents identified in response to the Special Interrogatories. (Id., at p. 7.)

Defendant provides the same following response to RFPs Nos. 1-2, 8-10, 16, and 19: “Documents responsive to this request are produced (includes Dropbox link).” (Id., at pp. 2, 4-6, 7.) Plaintiff states that it does not have access to the link even though it has attempted to gain access from Defendant. The court finds that Defendant’s response is invalid because the link does not work and the court is uncertain whether Defendant has complied with the court’s prior order.

In response to RFPs No. 15, Defendant responded that: “No documents exist or ever existed as no manufacture of PRODUCT after October 1, 2022. For PRODUCT manufactured before that date, documents responsive to this request are produced.” (Id., at p. 6.) For the remaining RFPs, Defendant stated: “There are no documents responsive to this request and

none ever existed.” (Id., at pp. 3-4, 6.) The court finds these responses to be deficient pursuant to Code of Civil Procedure section 2031.230, because Defendant does not state that it has conducted a diligent search and reasonable inquiry in an effort to comply with the requests.

Accordingly, the court grants Plaintiff's motion to compel further responses to RFPs.

V. CONCLUSION

Accordingly, Plaintiff's motions to compel further responses to the identified first set of form interrogatories and requests for production of documents are GRANTED. Plaintiff's motion to compel further responses to the first set of special interrogatories is DENIED.

Moving party to give notice, unless waived.

IT IS SO ORDERED.

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: August 3, 2026 TRIAL DATE: May 4, 2027

CASE: MONARCH LLC v. Total Resources International, Inc., et al.

CASE NO.: 24STCV07239

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S SECOND SET OF FORM INTERROGATORIES & REQUEST FOR ADMISSIONS

MOVING PARTY: Plaintiff MONARCH, LLC

RESPONDING PARTY(S): Unopposed

PROOF OF SERVICE:

· Correct Address: Yes.

· (CCP § 1005(b)): (1)-(2) OK. Served electronically on May 1, 2026 for a hearing date of August 3, 2026.

CASE HISTORY:

· 3/22/24: Complaint filed.

· 06/26/24: Amended Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a violation of Proposition 65 action. Plaintiff Mothers Oversight Network for Actionable Contaminant Harm aka MONARCH LLC ("Plaintiff") filed an amended complaint for civil penalty and injunctive relief against Defendant Total Resources International, Inc. ("Defendant"), and Does 1 through 100, on June 26, 2024. Plaintiff alleges that Defendant manufactured, distributed, and/or sold first aid kits within California that contained Diisononyl Phthalate ("DINP"), a known carcinogen, without providing a clear and reasonable warning, specifically the Be Smart Get Prepared 201 Piece First Aid Kit ("Product"). Plaintiff further alleges that it purchased the product from Walmart.com on May 12, 2023, which did not contain a Prop 65 warning, and requested an expert report analyzing the product: the expert opined on June 26, 2023, that use of the product would lead to unsafe exposure to DINP. Plaintiff thus served a Notice of Violation on the Office of the Attorney General, Defendant, and all other required sources. Plaintiff alleges that 60 days have passed since said service.

TENTATIVE RULING:

Plaintiff's motions to compel further responses to the identified second set of form interrogatories and requests for admissions are GRANTED. Further responses within 20 days.

Moving party to give notice.

DISCUSSION:

Motion to Compel Further Responses to Form Interrogatories & Requests for Admissions

Plaintiff moves to compel further responses to its second set of form interrogatories and requests for admissions.

I. LEGAL STANDARD

A. Interrogatories

Code of Civil Procedure section 2030.300 provides that a propounding party may bring a motion to compel further responses to interrogatories, where the propounding deems any of the following: (1) An answer to a particular interrogatory is evasive or incomplete, (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or (3) An objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) A motion compelling further responses to Interrogatories must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b).)

B. Requests for Admissions

Code of Civil Procedure section 2033.290(a) provides that "[o]n receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete; (2) An objection to a particular request is without merit or too general." (Code Civ. Proc., § 2033.290, subd. (a).) The burden is on the responding party to justify any

objection or failure to fully answer the requests. (See *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

II. TIMELINESS

A motion to compel further responses to interrogatories and requests for admission must be served “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Code Civ. Proc., §§ 2030.300, subd. (c), 2033.290, subd. (c).) The 45-day requirement is mandatory and jurisdictional. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff’s counsel propounded the second set of Requests for Admissions and Form Interrogatories on Defendant on April 9, 2025. (Greenbaum Decl., ¶ 5.) On August 4, 2025, Plaintiff filed a motion to deem requests for admissions, set two, admitted. (Id., at ¶ 16.) On September 16, 2025, Defendant served responses to only the requests for admissions. (Id., ¶ 17.) During an IDC on October 20, 2025, Defendant’s counsel stipulated that responses, without objections, would be provided by October 27, 2025. (Id., ¶ 10.) An extension was granted to October 29, 2025. (Id., ¶ 21.) During a second IDC meeting on February 5, 2026, Defendant’s counsel once again agreed to provide responses by February 10, but Defendant did not serve responses until March 26, 2026, which Plaintiff alleges were deficient.^[1] (Id., ¶¶ 28-37.) Plaintiff sent another email on March 26, 2026 regarding the deficient responses; as of these motions’ filings, Plaintiff has not received responses. (Id., ¶¶ 38-40.)

Accordingly, because Plaintiff’s motions were due on May 13, 2026, pursuant to Code of Civil Procedure sections 2030.300, subdivision (c) and 2033.290, subdivision (c), Plaintiff’s motions are timely.

III. MEET AND CONFER

A party making a motion to compel further responses must also include a declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented by the motion before filing the motion. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2033.290, subd. (b).)

Plaintiff’s counsel states that his office sent Defendant’s counsel a meet and confer letter regarding the discovery responses on March 26, 2026, which counsel failed to respond to. (Greenbaum Decl., ¶ 38.) While a single letter is usually not sufficient to demonstrate a “reasonable and good faith attempt” at informal resolution, this dispute as to the discovery responses has been bubbling for more than a year with multiple meet and confer efforts prior to the one on March 26, 2026. Accordingly, the Court turns to the motions’ merits in its discretion.

IV. ANALYSIS

Plaintiff propounded the second set of form interrogatories and requests for admissions on April 9, 2025. Defendant served responses to the discovery requests on March 26, 2026. (Id., ¶ 38; Greenbaum FROGs Decl., ¶ 37.)

A. Interrogatories

Plaintiff seeks further responses to form interrogatories (“FROGs”) 17 series, specifically as to requests for admission (“RFAs”) Nos. 5, 7-9, 12-13, 17-19, 21, 29-31, 34-35, and 41-42. Defendant has not filed an opposition to this motion.

FROGs No. 17.1 states:

"Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:

(a) state the number of the request;

(b) state all facts on which you base your response;

(c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and

(d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing."

(DISC-001 Form.)

Defendant identifies its responses to RFAs Nos. 5, 7-9, 12-13, 17-19, 21, 29-31, 34-35, and 41-42 as not including unqualified admissions.

Defendant responded to the FROGs 17 series as to RFAs Nos. 5, 7-9, and 12-13 with the following:

"b) Defendant filed demurrer because Notice not addressed to any of the three

corporate officers. While the Court overruled the demurrer on those grounds, Defendant disagrees.

c) John Levine, Esq. 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211

d) Notice of Violation."

(FROGs Sep. Statement, at pp. 2-6.)

The Court finds Defendant's responses to subdivision (b) specifically are deficient and evasive. Defendant fails to provide facts by which it bases its responses, and instead refers to a demurrer that was overruled, consequently rendering its reliance on that fact moot.

In response to the FROGs 17 series as to RFAs Nos. 17, Defendant stated: "Responding Party cannot admit or deny because Defendant did not receive a Walmart Marketplace proof of purchase." (Id., at p. 6.) Plaintiff states, however, that it did provide proof of purchase and Defendant acknowledges this in response to series 17 regarding RFA No. 45. Thus, the Court finds that further response is warranted.

In response to the interrogatories series as to RFAs Nos. 18-19, Defendant stated:

" b) Defendant included warning in the PRODUCT.

c) Teodoro Bunuga, Gina Rivera, Dawn Rivera, 420 South Lemon Ave., Walnut CA 91789. T: 909-594-1220

d) Records produced by Defendant to Plaintiff."

(Id., at pp. 7-8.)

The Court finds Defendant's response to be deficient. Defendant offers no facts other than a conclusory statement that it "included warning in the product" and fails to identify the relevant documents. (Ibid.)

In response to the FROGs 17 series as to RFAs No. 21, Defendant stated:

"b) Information publicly available indicates Federal law can preempt Prop 65

c) John Levine, Esq., 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211 Tel: 310-295-2277

d) Results of public internet search

e) "."

(Id., at p. 9.)

As an initial matter, the Court notes that Plaintiff requested further responses to this interrogatory twice in the separate statement; thus, the Court only considers one request. The Court finds Defendant's responses to subdivisions (b) and (d) to be deficient and evasive. "Information publicly available indicates Federal law can preempt Prop 65" is a possible legal argument, not facts. In addition, citing publicly available information or public internet searches without even providing identifying cites does not satisfy Defendant's discovery obligations.

Next, in response to FROGs 17 series as to RFAs Nos. 29-31, Defendant responded in the following similar ways:

"b) 'Case such as National Association of Wheat Growers v. Bonta (9th Cir., 2023) have held warnings can compromise compelled speech.

c) John Levine, Esq., 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211 Tel: 310-295-2277

d) 85 F. 4th 1263 (9th Cir. 2023) and may be other cases."

"b) Case law has held a Prop 64 warning can be false speech.

c) John Levine, Esq., 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211 Tel: 310-295-2277

d) The Personal Care Products Council v. Rob Bonta, Case No. 2:23-CV-01006-TLN JDP, 2025 WL 2323833 (E.D. Cal. Aug. 12, 2025)"

"b) Case law has held a Prop 64 warning can be misleading speech.

c) John Levine, Esq., 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211 Tel: 310-295-2277

d) Zauderer v. Office of Disciplinary Counsel (471 U.S., 626, 1985)"

(Id., at pp. 10-11.)

The Court finds Defendant's responses to subdivisions (b) and (d) to be deficient: Defendant fails to provide factual allegations as sought by the interrogatories and instead cites to case law without explaining how the cases pertain or inform the facts here. The Court also notes that unpublished cases are unpersuasive and do not bind this Court.

In response to FROGs 17 series as to RFAs No. 34, Defendant states:

"b) Defendant has always acted in good faith to comply with Prop 65 and its warning requirements.

c) Teodoro Bunaga, Gina Rivera, Dawn Rivera, 420 South Lemon Ave., Walnut CA 91789. T: 909-594-1220

d) Written evidence of warning, documents and oral testimony at trial."

(Id., at p. 13.)

As explained above, the Court finds Defendant's response to be deficient, especially for subdivision (b). Defendant does not state any facts supporting its response and instead relies on conclusory statements.

Lastly, in response to FROGs 17 series as to RFAs Nos. 35, 41-42, Defendant similarly states:

"b) Notice was addressed to Total Resources International, Inc. but none of its required statutory officers. While the Court has ruled otherwise, Responding Party disagrees.

c) Teodoro Bunaga, Gina Rivera, Dawn Rivera, 420 South Lemon Ave., Walnut CA 91789. T: 909-594-1220

d) 60-Day Notice of Violation"

"b) Since Notice of Violation was not properly served, Plaintiff waived its right to seek redress under Prop 65 (even though the Court denied such request; other Courts have held that failure vitiates a Plaintiff's claim.

c) John Levine, Esq., 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211

d) 60-Day Notice of Violation"

"b) Since Notice of Violation was not properly served, Plaintiff is estopped to asser[t] claim for redress under Prop 65 (even though the Court denied such request; other Courts have held that failure vitiates a Plaintiff's claim.

c) John Levine, Esq., 9025 Wilshire Blvd. Suite 304, Beverly Hills, CA 90211

d) 60-Day Notice of Violation"

(Id., at pp. 13-14.)

Similarly to the Court's finding above for the FROGs 17 series as to RFAs Nos. 5, 7-9, and 12-13, Defendant's responses to these interrogatories are deficient, especially as to subdivision (b) because Defendant fails to highlight facts to support its response and instead relies on an issue that the Court already ruled against.

Accordingly, the Court grants Plaintiff's motion to compel further responses to the identified FROGs.

B. Request for Admissions

Plaintiff moves for an order compelling further responses to RFAs No. 17. Defendant has not filed an opposition to this motion.

RFA No. 17 and Defendant's response are as follows:

"Admit the PRODUCT did not contain a CLEAR AND REASONABLE WARNING on the Walmart Marketplace proof of purchase sent to Defendant."

"Responding Party has no information or belief and on that basis cannot admit or deny."

(RFA Sep. Statement, at p. 2.)

As discussed above with the FROGs 17 series as to RFAs Nos. 17, Plaintiff alleges, however, that it did provide proof of purchase and that Defendant acknowledges this in response to series 17 regarding RFA No. 45. Defendant has not opposed this motion and thus does not offer a contradiction to Plaintiff's allegation. Therefore, the Court finds Defendant's response to be insufficient.

Accordingly, the court grants Plaintiff's motion to compel further responses to RFAs No. 17.

V. CONCLUSION

Accordingly, Plaintiff's motions to compel further responses to the identified second set of form interrogatories and requests for admissions are GRANTED. Further responses within 20 days.

Moving party to give notice.

IT IS SO ORDERED.

Dated: August 3, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

[1] The Court notes that while Counsel's declaration states the IDC was held on February 6, 2026, the Court's calendar and Counsel's declaration in Plaintiff's motion to compel further responses to the third set of special interrogatories filed on the same day state that the IDC was held on February 5th. The Court finds the differing dates to be a Scrivener's error and dates the IDC on February 5, 2026 per the case file.

[1] The Court notes that while Counsel's declaration states the IDC was held on February 6, 2026, the Court's calendar and Counsel's declaration in Plaintiff's motion to compel further responses to the third set of special interrogatories filed on the same day state that the IDC was held on February 5th. The Court finds the differing dates to be a Scrivener's error and dates the IDC on February 5, 2026, per the case file. Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: August 3, 2026 TRIAL DATE: May 4, 2027

CASE: MONARCH LLC v. Total Resources International, Inc., et al.

CASE NO.: 24STCV07239

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S THIRD SET OF FORM INTERROGATORIES

MOVING PARTY: Plaintiff MONARCH, LLC

RESPONDING PARTY(S): Unopposed

PROOF OF SERVICE:

· Correct Address: Yes.

· (CCP § 1005(b)): (1)-(2) OK. Served electronically on May 1, 2026 for a hearing date of August 3, 2026.

CASE HISTORY:

· 3/22/24: Complaint filed.

· 06/26/24: Amended Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a violation of Proposition 65 action. Plaintiff Mothers Oversight Network for Actionable Contaminant Harm aka MONARCH LLC ("Plaintiff") filed an amended complaint for civil penalty and injunctive relief against Defendant Total Resources International, Inc. ("Defendant"), and Does 1 through 100, on June 26, 2024. Plaintiff alleges that Defendant manufactured, distributed, and/or sold first aid kits within California that contained Diisononyl Phthalate ("DINP"), a known carcinogen, without providing a clear and reasonable warning, specifically the Be Smart Get Prepared 201 Piece First Aid Kit ("Product"). Plaintiff further alleges that it purchased the product from Walmart.com on May 12, 2023, which did not contain a Prop 65 warning, and requested an expert report analyzing the product: the expert opined on June 26, 2023, that use of the product would lead to unsafe exposure to DINP. Plaintiff thus served a Notice of Violation on the Office of the Attorney General, Defendant, and all other required sources. Plaintiff alleges that 60 days have passed since said service.

TENTATIVE RULING:

Plaintiff's motion to compel further responses to the identified third set of form interrogatories is GRANTED. Further responses within 20 days.

Moving party to give notice.

DISCUSSION:

Motion to Compel Further Responses to Form Interrogatories

Plaintiff moves to compel further responses to its third set of form interrogatories.[1]

I. LEGAL STANDARD

Code of Civil Procedure section 2030.300 provides that a propounding party may bring a motion to compel further responses to interrogatories, where the propounding deems any of the following: (1) An answer to a particular interrogatory is evasive or incomplete, (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or (3) An objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) A motion compelling further responses to Interrogatories must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b).)

II. TIMELINESS

A motion to compel further responses to interrogatories must be served “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Code Civ. Proc., § 2030.300, subd. (c).) The 45-day requirement is mandatory and jurisdictional. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff's counsel propounded the third set of Form Interrogatories on Defendant on September 18, 2025. (Greenbaum Decl., ¶ 5.) On October 17 & 18, 2025, Defendant's counsel requested that Plaintiff withdraw the discovery requests, but Plaintiff refused. (Id., at ¶ 6.) During an IDC meeting on February 5, 2026, Defendant's counsel agreed to provide responses by February 17, but Defendant did not serve responses until March 26, 2026, which Plaintiff alleges were deficient. (Id., ¶¶ 11, 18.) Plaintiff sent another email on March 26, 2026, regarding the deficient responses; as of this motion's filing, Plaintiff has not received responses. (Id., ¶¶ 19-21.)

Accordingly, because Plaintiff's motion was due on May 13, 2026, pursuant to Code of Civil Procedure section 2030.300, subdivision (c), Plaintiff's motion is timely.

III. MEET AND CONFER

A party making a motion to compel further responses must also include a declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented by the motion before filing the motion. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).)

Plaintiff's counsel states that his office sent Defendant's counsel a meet and confer letter regarding the discovery responses on March 26, 2026, which counsel failed to respond to. (Greenbaum Decl., ¶ 19.) While a single letter is usually not sufficient to demonstrate a “reasonable and good faith attempt” at informal resolution, this dispute as to the discovery request has been bubbling for more than a year with multiple meet and confer efforts prior to the one on March 26, 2026. Accordingly, the Court turns to the motion's merits in its discretion.

IV. ANALYSIS

Plaintiff propounded the third set of form interrogatories on September 18, 2025. Defendant served responses to the discovery request on March 26, 2026. (Id., ¶ 18.)

Plaintiff seeks further responses to form interrogatories (“FROGs”) Nos. 7 & 9. Defendant has not filed an opposition to this motion.

FROGs No. 7 and Defendant's response state:

“Admit PLAINTIFF's purchasing documents show the PRODUCT was purchased by PLAINTIFF at Walmart.com”

a) “7

b) Plaintiff did not purchase the Product from Responding Party and documents produced do not specifically identify.

c) Teodor Banaga, Moses Hall

d) Documents produced by Responding Party document when PRODUCT last made and sold by Responding Party.”

(Sep. Statement, at p. 2.)

FROGs No. 9 and Defendant's response state:

"Admit PLAINTIFF's purchasing documents do not provide a CLEAR AND REASONABLE WARNING prior to PLAINTIFF purchasing the PRODUCT."

a) ""

b) At all relevant time[s], Responding Party provided CLEAR AND REASONABLE WARNING on the PRODUCT.

c) Teodor Banaga, Moses Hall

d) Responding Party unaware of any other documents produced by Plaintiff"

(Sep. Statement, at pp. 2-3.)

The Court finds Defendant's responses are deficient and evasive. First, as to FROGs No. 7, Defendant fails to provide facts by which it bases its response and refers to documents without identifying said documents or how/what they "do not specifically identify." Next, as to FROGs No. 9, Defendant fails to respond to subdivision (a) and provides an invalid conclusory statement rather than facts supporting its responses in subdivision (b). In addition, Defendant paradoxically states in FROGs No. 9, subdivision (d) that it is unaware of any purchasing documents produced by Plaintiff yet speaks to the purchasing documents in its response to FROGs No. 7. Lastly, for both interrogatories, Defendant provides the two names in subdivisions (c) without identifying who the individuals are or the other sought personally identifiable information. Thus, the Court finds that further responses are warranted.

Accordingly, the Court grants Plaintiff's motion to compel further responses to the identified FROGs.

V. CONCLUSION

Accordingly, Plaintiff's motion to compel further responses to the identified third set of form interrogatories is GRANTED. Further responses within 20 days,

Moving party to give notice.

IT IS SO ORDERED.

Dated: August 3, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

[1] The Court notes that while Plaintiff's motion and reply state that Plaintiff is moving for an order compelling Defendant's further responses to the identified third set of form interrogatories, Plaintiff's separate statement identified the interrogatories as special interrogatories. The Court finds this to be a Scrivener's error and assumes the interrogatories brought forth for consideration are form interrogatories.

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: August 3, 2026 TRIAL DATE: May 4, 2027

CASE: MONARCH LLC v. Total Resources International, Inc., et al.

CASE NO.: 24STCV07239

MOTION TO COMPEL RESPONSES TO PLAINTIFF'S FOURTH SET OF FORM INTERROGATORIES; MOTION TO DEEM PLAINTIFF'S FOURTH SET OF REQUESTS FOR ADMISSIONS TRUE; MOTION TO COMPEL DEPOSITION ATTENDANCE AND FOR ORDER SETTING DEPOSITION DATE

MOVING PARTY: Plaintiff MONARCH, LLC

RESPONDING PARTY(S): Unopposed

PROOF OF SERVICE:

- Correct Address: Yes.
- (CCP § 1005(b)): (1)-(2) OK. Served electronically on May 1, 2026 for a hearing date of August 3, 2026.

CASE HISTORY:

- 3/22/24: Complaint filed.
- 06/26/24: Amended Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a violation of Proposition 65 action. Plaintiff Mothers Oversight Network for Actionable Contaminant Harm aka MONARCH LLC ("Plaintiff") filed an amended complaint for civil penalty and injunctive relief against Defendant Total Resources International, Inc. ("Defendant"), and Does 1 through 100, on June 26, 2024. Plaintiff alleges that Defendant manufactured, distributed, and/or sold first aid kits within California that contained Diisononyl Phthalate ("DINP"), a known carcinogen, without providing a clear and reasonable warning, specifically the Be Smart Get Prepared 201 Piece First Aid Kit ("Product"). Plaintiff further alleges that it purchased the product from Walmart.com on May 12, 2023, which did not contain a Prop 65 warning, and requested an expert report analyzing the product: the expert opined on June 26, 2023, that use of the product would lead to unsafe exposure to DINP. Plaintiff thus served a Notice of Violation on the Office of the Attorney General, Defendant, and all other required sources. Plaintiff alleges that 60 days have passed since said service.

TENTATIVE RULING:

Accordingly, Plaintiff's motion to compel responses to the fourth set of form interrogatories and to deem the fourth set of requests for admissions true is GRANTED. Plaintiff's motion to compel Rivera's deposition attendance is GRANTED. The Court reserves the right to set the remote deposition date and time at the hearing.

Moving party to give notice, unless waived.

DISCUSSION:

Motions to Compel Responses to Form Interrogatories, Deem Requests for Admissions True, and Compel Deposition Attendance

Plaintiff moves to compel responses to its fourth set of form interrogatories, to deem its fourth set of requests for admissions true, and to compel the deposition attendance of George Carmen Del Rivera ("Rivera").

I. LEGAL STANDARD

A. Interrogatories and Requests for Admissions

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., §§ 2030.290(b).) If a party to whom requests for admission are directed fails to serve a timely response, the propounding party may move for an order that the truth of the matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280(b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a), 2033.280(a).) A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].)

B. Compel Deposition

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition shall give a notice in writing which states the specification of reasonably particularity of any materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) An individual's deposition shall be taken at a location either "within 75 miles of the deponent's residence, or within the

county where the action is pending and within 150 miles of the deponent's residence," at the requesting's party's option. (Code Civ. Proc., § 2025.250, subd. (a).) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).) The party served with a deposition notice waives any error or irregularity unless that party promptly serves a written objection at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410, subd. (a).) "If an objection is made three calendar days before the deposition date, the objecting party shall make personal service of that objection pursuant to Section 1011 on the party who gave notice of the deposition. Any deposition taken after the service of a written objection shall not be used against the objecting party under Section 2025.620 if the party did not attend the deposition and if the court determines that the objection was a valid one." (Id., subd. (b).)

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party...without having served a valid objection ... fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

II. MEET AND CONFER

A motion brought to compel a deposition pursuant to Code of Civil Procedure section 2025.450 "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition... by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040 provides in full: "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

The objective of the "meet and confer" requirement is to informally resolve legitimate disputes and disagreements regarding the scope of discovery proceedings. (Manzetti v. Superior Court (1993) 21 Cal.App.4th 373, 380, fn. 8.) Thus, a reasonable and good faith attempt at informal resolution of a discovery dispute requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) When engaged in "meet and confer," counsel cannot reject reasonable proposals without suffering the consequences. (Manzetti, supra, 21 Cal.App.4th at 380, fn. 8.) Whether the "meet and confer" is to be deemed adequate depends on the circumstances: in a larger, more complex discovery context, a greater effort at informal resolution may be warranted; in a simpler or more narrowly focused case, a more modest effort may suffice. (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431-432.) The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, and the prospects for success can be relevant to the determination as well. (Id.)

Plaintiff's counsel states that his office followed up with Defendant's counsel on March 13, 2026, regarding the motion to compel deposition. (Greenbaum Depo Decl., ¶ 24.) Opposing counsel replied on March 16, stating that he would provide all outstanding discovery by March 20th. (Id., at ¶ 25.) On March 23, 2026, Plaintiff's counsel states that his office requested further information regarding the deposition, but opposing counsel did not respond. (Id., at ¶ 28.) Plaintiff's counsel further declares that his office sent a meet and confer letter regarding the discovery responses and the deposition on March 26, 2026, which opposing counsel failed to respond to. (Id., at ¶ 29.) While a single letter is usually not sufficient to demonstrate a "reasonable and good faith attempt" at informal resolution, this dispute as to the discovery requests and the deposition has been bubbling for more than a year with multiple meet and confer efforts prior to the one on March 26, 2026. Accordingly, the Court turns to the motion's merits in its discretion.

III. ANALYSIS

Plaintiff propounded the fourth set of form interrogatories and requests for admissions on January 26, 2026. On September 2, 2025, Plaintiff served a Notice of Deposition to Defendant's counsel to take place remotely on September 15, 2025, which opposing counsel objected to on September 12, 2025. (Id., ¶ 6, 10.) Plaintiff noticed Rivera's deposition daily during the week of September 15-19, but Rivera did not appear. (Id., at ¶ 11.) On February 6, 2026, Defendant's counsel stipulated that

Defendant would provide dates for Rivera's deposition by February 10, 2026; as of the filing of these motions, Plaintiff has not received these dates. (Id., at ¶¶ 20, 31.)

A. Interrogatories and Requests for Admissions

Plaintiff seeks responses to its fourth set of form interrogatories ("FROGs") and moves to deem its fourth set of requests for admissions ("RFAs") true.

It is undisputed that Plaintiff properly served Defendant with these discovery requests on January 26, 2026. Although the responses were initially due on February 27, 2026, after receiving no response, Plaintiff's counsel reached out to opposing counsel on March 5, 2026, and provided an extension to March 13, 2026. (Greenbaum FROGs Decl., ¶¶ 5-6.) On March 13, Plaintiff's counsel emailed opposing counsel warning that Plaintiff would file the operative motions if responses were not received by March 16. (Id., at ¶ 7.) Defendant's counsel replied on March 16, 2026, stating that Defendant would provide all outstanding discovery by March 20, 2026; on March 20, Defendant's counsel requested an extension to respond to the fourth set of discovery requests by March 27, which was granted on the 24th. (Id., at ¶¶ 8-10.) As of the filing of these motions, Defendant has not served verified responses to the fourth set of discovery requests.

Defendant did not file an opposition to a single motion.

Accordingly, the court finds Plaintiff is entitled to an order compelling verified, objection-free responses to the fourth set of FROGs and an order deeming the RFAs admitted.

B. Compel Deposition

Plaintiff seeks to compel George Carmen Del Rivera's deposition appearance and to set the remote deposition on September 15, 2026, at 10:00 a.m., or at another date and time as the Court deems appropriate.

On September 2, 2025, Plaintiff served a Notice of Deposition to Defendant's counsel to take place remotely on September 15, 2025, which opposing counsel objected to on September 12, 2025. (Greenbaum Depo Decl., ¶ 6.) Plaintiff claims the objection, which "citing Local Rule 3/Appendices 3A(e)3, claim[ed] Plaintiff was attempting to 'jump the line' when another objection had been set," was untimely. (Mot., at p. 3.) However, pursuant to Code of Civil Procedure section 2025.410, subdivisions (a)-(b), Defendant must serve a written objection at least three calendar days prior to the date for which the deposition is scheduled, with personal service required if served on the third day; September 12 is 3 calendar days prior to September 15, and Plaintiff does not allege or provide evidence that the objection was not served with personal service.

Plaintiff noticed Rivera's deposition daily during the week of September 15-19, but Rivera did not appear. (Greenbaum Depo Decl., ¶ 6, 10.) On February 6, 2026, Defendant's counsel stipulated that Defendant would provide dates for Rivera's deposition by February 10, 2026; as of the filing of these motions, Plaintiff has not received these dates. (Id., at ¶¶ 20, 31.)

Plaintiff argues that the deposition testimony is relevant to the claims and defenses at issue here because Rivera "has direct knowledge of Total Resources International Inc.'s business practices, specifically concerning clear and reasonable warnings and the presence/absence thereof." (Mot., at p. 6.)

The Court finds that an order compelling Rivera's deposition appearance is warranted because Rivera's failed to attend the previously scheduled depositions and there is dispute regarding the timeliness of the objection. Furthermore, Defendant's counsel has failed to provide dates for Rivera's deposition even after stipulating that he would in February 2026. In addition, Defendant has not opposed the instant motion to provide any explanation or justification for Rivera's non-appearance and counsel's failure to provide new dates.

Accordingly, the motion to compel Rivera's deposition attendance is granted. The Court reserves the right to set the remote deposition date and time at the hearing.

IV. CONCLUSION

Accordingly, Plaintiff's motion to compel responses to the fourth set of form interrogatories and to deem the fourth set of requests for admissions true is GRANTED. Plaintiff's motion to compel Rivera's deposition attendance is GRANTED. The Court reserves the right to set the remote deposition date and time at the hearing.

Moving party to give notice, unless waived.

IT IS SO ORDERED.

Dated: August 3, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: August 3, 2026 TRIAL DATE: May 4, 2027

CASE: MONARCH LLC v. Total Resources International, Inc., et al.

CASE NO.: 24STCV07239

MOTION FOR MONETARY SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS

MOVING PARTY: Plaintiff MONARCH, LLC

RESPONDING PARTY(S): Unopposed

PROOF OF SERVICE:

- Correct Address: Yes.
- (CCP § 1005(b)): (1)-(2) OK. Served electronically on July 2, 2026 for a hearing date of August 3, 2026.

CASE HISTORY:

- 3/22/24: Complaint filed.
- 06/26/24: Amended Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a violation of Proposition 65 action. Plaintiff Mothers Oversight Network for Actionable Contaminant Harm aka MONARCH LLC ("Plaintiff") filed an amended complaint for civil penalty and injunctive relief against Defendant Total Resources International, Inc. ("Defendant"), and Does 1 through 100, on June 26, 2024. Plaintiff alleges that Defendant manufactured, distributed, and/or sold first aid kits within California that contained Diisononyl Phthalate ("DINP"), a known carcinogen, without providing a clear and reasonable warning, specifically the Be Smart Get Prepared 201 Piece First Aid Kit ("Product"). Plaintiff further alleges that it purchased the product from Walmart.com on May 12, 2023, which did not contain a Prop 65 warning, and requested an expert report analyzing the product: the expert opined on June 26, 2023, that use of the product would lead to unsafe exposure to DINP. Plaintiff thus served a Notice of Violation on the Office of the Attorney General, Defendant, and all other required sources. Plaintiff alleges that 60 days have passed since said service.

TENTATIVE RULING:

Plaintiff's motion for monetary sanctions for misuse of the discovery process is GRANTED. Sanctions are awarded in favor of Plaintiff and jointly and severally against Defendant and Defendant's counsel, John Levine, in the amount of \$28,819.75.

Moving party to give notice.

DISCUSSION:

Motions for Monetary Sanctions for Misuse of the Discovery Process

Plaintiff moves for an order imposing monetary sanctions, jointly and severally, in the sum of \$48,186.77, against Defendant and its counsel of record, Mr. John Levine. Plaintiff brings this motion on the grounds that Defendant egregiously and continuously misused the discovery process in connection with the first through fourth sets of discovery requests as well as the deposition of George del Carmen Rivera.

I. LEGAL STANDARD

"To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

(Code Civ. Proc., § 2023.030, subd. (a).)

II. ANALYSIS

Plaintiff moves for an order imposing monetary sanctions, jointly and severally, in the sum of \$48,186.77, against Defendant and its counsel of record, Mr. John Levine. Plaintiff brings this motion on the grounds that Defendant egregiously and continuously misused the discovery process in connection with the first through fourth sets of discovery requests as well as the deposition of George del Carmen Rivera.

This Court previously awarded sanctions in favor of Plaintiff and jointly and severally against Defendant and Defendant's counsel, in the amount of \$28,819.75. (Min. Order, May 12, 2026.) This Court found that "there has been an egregious and inexcusable misuse of the discovery process by Defendant and Defendant's counsel." (Id., at p. 2.) This Court summarized some of Defendant's abuse, included in relevant part below:

"On October 11 and October 14, 2024, this Court (through a different judicial officer) granted Plaintiff's Motion to Compel Further Responses to Discovery Set One. The Court ordered Defendant to provide verified, code-compliant responses without objection within 30 days of that order.

To say Defendant failed to comply is to understate the record. Defendant completely avoided complying with the Court's order for over a year. Defendant and Defendants' counsel simply did not serve responses without objection. More than a year later, on October 20, 2025, at an informal discovery conference, Defendants' counsel stipulated to provide responses without objection to this same discovery. Counsel did not meet that deadline. On February 5, 2026, counsel again agreed to provide responses without objection, this time by February 10, 2026. Defendant's counsel failed to comply with that newer order, as well. Finally, a response was provided on March 20, 2026, and Defendant also agreed to pay \$1,000 in sanctions. However, even as to the responses that were provided there were numerous and obvious failures by Defendant. The responses were still not provided without objection. They still contained introductory statements with general objections. And Defendant did not provide Dropbox or means of access to documents that were produced.

Put simply, despite ample opportunity to do so, informal intervention by the Court, and patience by Plaintiff's counsel, Defendant did not comply with the Court's October 2024 orders and still has not done so, almost 19 months later. Meanwhile, Plaintiff served three additional sets of discovery (sets (2) through (4).) Adequate responses to that discovery has not been provided yet, either. However, those discovery requests are not yet the subject of court orders on motions to compel (such motions are pending but have not yet been heard). The Court also notes that it has held numerous informal discovery conferences in the case, at which defense counsel has made many promises to do better, few of them kept."

(Id., at pp. 2-3.)

This Court has ruled the following regarding the outstanding discovery motions:

1. Plaintiff's motions to compel further responses to the identified first set of form interrogatories and requests for production of documents are GRANTED. Plaintiff's motion to compel further responses to the first set of special interrogatories is DENIED.

2. Plaintiff's motions to compel further responses to the identified second set of form interrogatories and requests for admissions are GRANTED.

3. Plaintiff's motion to compel further responses to the identified third set of form interrogatories is GRANTED.

4. Plaintiff's motion to compel responses to the fourth set of form interrogatories and to deem the fourth set of requests for admissions true is GRANTED. Plaintiff's motion to compel Rivera's deposition attendance is GRANTED. The Court reserves the right to set the remote deposition date and time at the hearing.

This Court previously awarded \$28,819.75 in sanctions because "approximately 50% of the discovery sanctions sought are reasonably attributable to work done in connection with the first set of discovery requests (that reasonable attribution includes that the second, third, and fourth discovery requests were largely necessitated by Defendant's discovery failures concerning the first discovery request)." (Id., at p. 4.) However, this Court noted "that Plaintiff may be able to recover the remaining 50%, or more, in connection with the currently pending motions to compel." (Ibid.)

The Discovery Act is explicit regarding the Court's wide discretion to impose sanctions against a party who fails to comply with an existing discovery order: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2023.030.) And the Court may make "those orders that are just" for a failure to obey a prior order. (Code Civ. Proc., § 2030.290(c).) As this Court previously finds, "here, given Defendant and Defendant's counsel's lengthy, consistent, and uncontradicted record of non-compliance, sanctions are amply justified." (Order, at p. 4.)

Defendant has not filed an opposition to this motion.

This Court previously held that Plaintiff's counsel's and paralegals' hourly rates and overall time spent is reasonable. (Id.) Accordingly, the Court awards \$28,819.75 (or 50% of the total amount previously requested that this court found reasonable.) Defendant and its counsel continued the egregious behavior this Court identified as to the first set of discovery requests with the remaining three sets and the motion to compel Rivera's deposition. The Court notes that while Plaintiff requests sanctions for the first set of discovery requests that were decided upon today, this Court granted sanctions in the May 12 Order as to those discovery requests and thus does not double-grant.

III. CONCLUSION

Accordingly, Plaintiff's motion for monetary sanctions for misuse of the discovery process is GRANTED. Sanctions are awarded in favor of Plaintiff and jointly and severally against Defendant and Defendant's counsel, John Levine, in the amount of \$28,819.75.

Moving party to give notice.

IT IS SO ORDERED.

Dated: August 3, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.